



MEMORANDUM OF UNDERSTANDING (MoU)

This Memorandum of Understanding (MOU) is made on 04 March 2020, at Lucknow, Uttar Pradesh.

BETWEEN

Governor of Uttar Pradesh (GoUP) through Shri Navneet Sehgal, Principal Secretary, Micro, Small, Medium Enterprises and Export Promotion Department, Government of Uttar Pradesh (hereinafter referred to as "GoUP") of one part;

AND

Quality Council of India (QCI) was established, through a Cabinet Decision of Feb 1996, as an autonomous body under the Department for Promotion of Industry & Internal Trade (DPIIT), Ministry of Commerce & Industry, Government of India, having its Head Office at 2nd Floor, Institution of Engineers Building, 2-Bahadur Shah Zafar Marg, New Delhi, 110002 (hereinafter referred to as "QCI") of second part.

GoUP and QCI are herein after collectively referred to as "Parties" and individually as "Party".

WHEREAS ODOP (One District One Product) Cell is a programme implementation cell set up by Directorate of Industries, Government of Uttar Pradesh, to implement One District One Product programme of the State Government, having its principal office at Niryat Bhawan, First Floor, 8 Cantt Road, Qaiserbagh, Lucknow – 226001, Uttar Pradesh (hereinafter referred to as "ODOP Cell").

WHEREAS, QCI is set up to provide accreditation services, to promote quality of goods & services, to create a mechanism for third party assessment / quality monitoring of products, services and processes, and to undertake capacity building initiatives through awareness /



training / sensitization programs and to spread quality movement in India across industry sectors.

AND WHEREAS, Government of Uttar Pradesh, through its Department of MSME & Export Promotion look after affairs of the industries, including MSMEs in the state of UP.

AND WHEREAS through this MoU, GoUP and QCI recognise that cooperation among the two will further accelerate the development of Quality framework for each of the ODOP product under ODOP Programme and its usage by ODOP producers in Uttar Pradesh in a structured manner, training of stakeholders and assessment of vendors and artisans, and ultimately MSMEs using ODOP logo on its ODOP products, thus ensuring quality of the products being produced.

NOW, THEREFORE, THIS MoU WITNESSES as below:

I. ROLES AND RESPONSIBILITIES:

GoUP and QCI hereby agree to cooperate with each other, aimed at development of Quality framework and ecosystem of enhanced use of quality specification in ODOP products manufacturing in Uttar Pradesh.

A) QCI

1. QCI will develop a complete quality framework that will identify and/or develop two-dimensional quality assessment parameters for all ODOP products (For domestic and export markets separately).
2. QCI will develop an extensive module for conducting sensitization workshops for all the stakeholders (including artisans, MSME units and ODOP officials) and thus increasing awareness about quality standards developed for ODOP products.
3. QCI will provide handholding to manufacturers/ artisans of ODOP products in detecting quality-related loopholes and rectifying the same in reference to defined quality framework (as mentioned in para I.A.1 of this MOU) in a timebound manner.



4. To facilitate testing of the ODOP products as per defined Quality framework, QCI will prepare the complete list of tests needed for each of ODOP product. There will be separate list for required tests to conform to domestic and export quality standards.
5. QCI will apprise the details of nearby testing agency available for each test for each ODOP product by leveraging accredited testing and Calibration Labs under National Accreditation Board for Calibration and Testing Laboratory.
6. QCI will assist in deploying assessors from accredited agencies for sampling and collection of sampled products from artisans / MSMEs who have self-nominated themselves to under the ODOP Quality Assurance Process in each district. The process of sample collection will be mutually decided between the two parties.
7. QCI will guide in transportation of the sampled products to the respective laboratory(/ies) through their trained assessors empanelled by NABCB accredited certification/inspection bodies.
8. The quality framework body of QCI will advise on product-wise Recertification requirements and intervals for subsequent rounds of testing, after an artisan / MSME has successfully completed the initial Certification.
9. QCI will develop and manage a dashboard for live monitoring of the process of quality assessment of products. The dashboard will present a real-time district-wise picture, detailing number of products, the number of artisans / MSMEs physically visited at the manufacturing sites as well as the number of products to be sampled by the accredited assessor, along with other details as mutually agreed by two parties.
10. For districts, wherein testing labs are not available as per defined quality framework/standards, QCI/its related agencies can apply for Testing Centres under CFC Scheme of the ODOP Programme. ODOP Cell will evaluate these proposals on merit-basis as per provisions of CFC Scheme.



B). ODOP Cell shall assist QCI in achieving the above-mentioned objectives by:

1. Identifying 'Nodal officers': ODOP Cell shall appoint officers at district and zonal level of the Department who shall extend necessary support to QCI in meeting above mentioned objectives.
2. The charges of the testing for each product will be decided by a committee chaired by Commissioner & Director, Directorate of Industries & Enterprise Promotion. The other members of the committee will include officials from QCI and NABL, technical representatives and other State officials. An official of the rank of Joint Commissioner or above from ODOP Cell shall act as Member Secretary of the committee.
3. Sharing MSMEs related and other relevant database / information with QCI as required for its dashboard and Assessment process.
4. Providing infrastructure to QCI and its agencies to carry out its activities including trainings/ orientation workshops/ meetings/ events, etc.

For completion of each deliverable under this MOU, QCI will submit the detailed proposals and decisions shall be taken on case-to-case basis.

II. PROJECT TIMELINE

This MoU will commence from 04 March 2020 and will continue till 5 years until any party wants to terminate this MOU by giving prior notice to other Party as per provision of Article V of this MOU.

III. OPERATIONS AND CO-ORDINATIONS

1. Each party will use information which is made available by the other party under this MOU solely for achieving the purpose of this MOU. However, if such purpose involves disclosing such information to third party or publishing such information in any form, then prior written consent of the other party should be obtained.



2. Expense towards carrying out the stated activities/objectives by QCI shall be decided mutually based on stipulated government rules/orders/procedures.
3. GoUP through its department of MSME & Export Promotion and ODOP Cell along with QCI shall mutually acknowledge the contribution of each other, wherever possible, on their website and media platforms including print, TV and digital media.
4. Any amendment in this MoU will be made in writing by mutual consent of both the parties.

IV. FORCE MAJEURE

1. For the purpose of this MoU 'Force Majeure' means an event which is beyond the reasonable control of a Party, either GoUP through ODOP Cell or QCI and which makes a party's performance regarding its obligations hereunder impossible or so impracticable as reasonably to be considered impossible in the circumstances and include, but is not limited to war, riots, civil disorder, earthquakes, fire, explosions, storm, flood, and other adverse weather conditions, strikes, lock-outs, or other similar actions, political uncertainties, change in priorities in the National and State missions, which is not within the power of the Party invoking "force majeure" to prevent any other action by the other Party.
2. If any Party finds itself incapable to perform its duty due to Force Majeure, it will give notice to other Party that Force Majeure event has arisen.
3. The failure of any Party, either GoUP through ODOP Cell or QCI to fulfil any of its obligations is hereunder shall not be considered to be the breach of or default under this MoU in so far as such inability arises from an event of Force Majeure provided that the Party affected by such event should take all reasonable precautions and due care for reasonably carrying out the terms and condition of this MoU.
4. In the event of a Force Majeure, GoUP through ODOP Cell and QCI shall consult each other with a view to agreeing on appropriate measures to be taken under the circumstances.



V. TERMINATION

This MoU can be terminated by either side with a written notice of 60 days, showing adequate reason.

VI. DISPUTES RESOLUTION

Any dispute between GoUP through its department of MSME & Export Promotion & ODOP Cell and QCI on any matter that has relevance to the smooth and effective implementation of the MoU shall be settled through mutual discussion.

IN WITNESS WHEREOF the Parties hereto have signed this MoU on the day and year first above written.

For and on behalf of Governor of
Uttar Pradesh

For and on behalf of QCI

(Navneet Sehgal)

Principal Secretary,
Department of MSME & Export Promotion,
Government of Uttar Pradesh

(Dr R P Singh)

Secretary General,
Quality Council of India

Witness 1

Name:

Signature:

Witness 2

Name:

Signature: